



File No.: EXP202209380

RESOLUTION OF ARCHIVING OF PROCEEDINGS

From the proceedings carried out by the Spanish Agency for Data Protection and based on the following:

FACTS

FIRST: The Spanish Agency for Data Protection became aware through a complaint of certain facts that could violate the legislation on data protection. On July 21, 2022, the Director of the Spanish Agency for Data Protection urged the General Subdirectorate for Data Inspection (SGID) to initiate the preliminary investigation proceedings referred to in Article 67 of Organic Law 3/2018, of December 5, on Personal Data Protection and the guarantee of digital rights (hereinafter, LOPDGDD) to investigate SERVICIO NAVARRO DE SALUD - OSASUNBIDEA with NIF Q3150004D in relation to the following facts:

In the process of the opposition for the General Services of the Government of Navarra, provisional lists, definitive lists of admitted candidates, and lists of approved candidates are published. In the lists of the 2021 opposition, specially protected data concerning women victims of gender-based violence are systematically violated, publishing their first and last names, easily identifiable, in some cases, as in the call to the exam where the exact location of these women could be known.

The complainant states that, up to the date of July 21, 2022, the date on which the complaint was filed with the Agency, the aforementioned publications continue to occur.

Relevant documentation provided by the complainant:

☐ List titled "Temporary Hiring List. General Services. Primary Care Management. Navarra Health Service" published by the entity being complained about, which includes the first and last names of 4041 individuals along with the following data: order, points, status, priority additional provision 7th, priorities over 55, start and end date, cause, position, center, and disposition. At the end of the list, it states verbatim "Updated list with the requests for open lists received in the Contract Management, Admission, and Promotion Service until the date 20/06/2022." The footer indicates the date of the last update as 20/07/2022.

SECOND: The General Subdirectorate for Data Inspection proceeded to carry out preliminary investigation proceedings to clarify the facts in question, by virtue of the functions assigned to the control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and of

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

in accordance with the provisions established in Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following points:

On September 26, 2022, the Data Inspection accessed the website of the Navarra Health Service navarra.es verifying that it offers a consultation to the lists of temporary hiring.

Using the search criteria "General Services" and "Primary Care Management," a list of 4035 individuals was obtained, updated as of Last Update Date: 25/09/2022 19:35:54, which largely coincides with that provided in the complaint. The data includes names and surnames, order, points, situation, priority additional provision 7th, priorities over 55, start and end dates, cause, position, center, and disposition. On October 7, 2022, and April 26, 2023, responses were received to the information requests sent from the Data Inspection, from which the following can be inferred:

- The Navarra Health Service states that the publication of the hiring lists is based on the provisions of Article 17 of Foral Order 347E/2017, of March 23, from the Minister of Health, which approves the management rules for the lists of candidates for temporary hiring in the centers and establishments of the autonomous bodies attached to the Department of Health.

Article 17 on Publicity establishes: "All lists of temporary hiring of personnel shall be public, and access

to them shall be available through the website of the Government of Navarra. These lists shall contain the information that allows each person to know the position they occupy at any given moment in accordance with the provisions of Foral Law 11/2012, of June 21, on Transparency and Open Government.”

In relation to this article, the responding party states that since it is access to public employment, the principles of equality, merit, and capacity must be respected. Therefore, candidates must be able to know the situation of the other candidates, as well as certain circumstances, in order to detect a possible irregularity and claim accordingly.

The lists are published at <https://empleosalud.navarra.es/es/>, in the section “hiring,” selecting “Non-health categories,” “Navarra Health Service Osasunbidea,” and “General Services.”

In this regard, on December 13, 2022, the Data Inspection accessed the web address provided by the NAVARRA HEALTH SERVICE where the different lists corresponding to job candidates are published, verifying that various types of lists are included, one of which largely coincides with that provided in the complaint and contains the data of 5142 individuals with the last update date of 13/12/2022 0:13:15.

- The responding party states that in addition to the aforementioned article of Foral Order 347E/2017, Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations in its Article 45.1 b) establishes that “Administrative acts shall be subject to publication when so established by the regulatory norms of each procedure or when advised by reasons of public interest appreciated by the competent body....b) When they are

3/7

acts that are part of a selective procedure or competitive bidding of any kind. In this case, the announcement of the procedure must indicate the medium where the successive publications will be made, and those carried out in different places will be deemed invalid.

In this regard, the responding party states that “the call for a public job constitutes a competitive procedure in which the candidates follow an order of precedence.” This constitutes a lawful basis for processing in the sense of Article 6.1 c) of the GDPR, which establishes: “Processing shall be lawful only if and to the extent that at least one of the following applies... c) processing is necessary for compliance with a legal obligation to which the controller is subject” in relation to Article 8.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights regarding “Data processing by legal obligation, public interest or exercise of public powers.”

-

Regarding the origin of the data listed, the responding party states that it can be of two types: the application for participation in a public job announcement or open hiring lists for a job position (Article 2.3, points 1, 2, 3, and 5, of Foral Law 347E/2017).

Concerning the data appearing in the lists, they state that for hiring, there are certain preferences related to the degree of disability.

Section 4 of the Seventh Additional Provision of the Consolidated Text of the Statute of Personnel at the service of the Public Administrations of Navarra, approved by Foral Legislative Decree 251/1993, of August 30, establishes that: “In the public job offers of the Public Administrations of Navarra, a quota of no less than 3 percent of the vacancies will be reserved to be filled by persons with a degree of disability equal to or greater than 33 percent, provided that they pass the selective tests and, at the time, prove the indicated degree of disability and the compatibility with the performance of the corresponding tasks and functions.”

In the exposed lists, this circumstance is referenced with an asterisk and its legend. The preference of a candidate for being over 55 years old is also published (Article 8.4 of Foral Order 347E/2017).

-

Regarding persons who are victims of gender-based violence, the claimant states that in Organic Law 3/2018, of December 5, on Data Protection and Guarantee of Digital Rights, in its Seventh Additional Provision on the identification of those concerned in notifications by means of announcements and publications of administrative acts, the following is indicated: In order to prevent risks for victims of gender-based violence, the Government will promote the development of a collaboration protocol that defines safe procedures for the publication and notification of administrative acts, with the participation of the bodies competent in the matter.

They state that “In order to preserve the identity and safety of persons who are victims of gender-based violence, the Navarra Health Service has implemented organizational and technical measures until the criteria for establishing a common protocol are unified, allowing victims of gender-based violence to request that their name and surname data be modified so as not to be identified by the aggressor.”

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es
4/7

They inform that the following measures have been established:

- ☐ In the event that the competitive examination includes a reservation for Victims of Gender Violence, individuals who wish to do so may indicate in the registration form their intention to participate under the reserved quota, in which case the name change is automatically made, assigning a fictitious name that is reflected in their registration receipt along with their true name. Thus, the individual has a record of both names together in the same document. Throughout the entire process, the fictitious name will be used.
- ☐ If there is no reservation for Victims of Gender Violence, the individual may request a name change in a form submitted through the Official Registry, upon justification and identification. From this moment on, the fictitious name will be used.
- ☐ In the lists of temporary hiring resulting from a competitive examination where the fictitious name was used, it will remain so for the duration of the list.
- ☐ In open hiring lists that do not derive from a competitive examination, the individual may request a name change through a form submitted to an Official Registry. In this case, identification of the requesting individual is required, as well as documentation justifying the request. From this moment on, the fictitious name will be used in all temporary hiring lists in which the individual is registered.

LEGAL GROUNDS

I

Competence

In accordance with the functions conferred to each supervisory authority by Article 57.1 a), f), and h) of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR) and as provided in Articles 47 and 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to resolve these investigative actions.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Security of Processing

Article 32 of the GDPR stipulates the following:

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

5/7

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing, as well as the risks of varying likelihood and severity for the rights and freedoms of natural persons, the controller and the processor shall implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk, which may include, among others:

- a) the pseudonymization and encryption of personal data;

- b) the ability to ensure the ongoing confidentiality, integrity, availability, and resilience of processing systems and services;
 - c) the ability to restore the availability and access to personal data quickly in the event of a physical or technical incident;
 - d) a process for regularly verifying, assessing, and evaluating the effectiveness of the technical and organizational measures to ensure the security of processing.
2. In assessing the appropriateness of the level of security, particular consideration shall be given to the risks presented by the processing of data, in particular as a consequence of the accidental or unlawful destruction, loss, or alteration of personal data transmitted, stored, or otherwise processed, or the unauthorized communication or access to such data.
3. Adherence to an approved code of conduct pursuant to Article 40 or to an approved certification mechanism pursuant to Article 42 may serve as an element to demonstrate compliance with the requirements set out in paragraph 1 of this article.
4. The controller and the processor shall take measures to ensure that any person acting under the authority of the controller or the processor and having access to personal data only processes such data on instructions from the controller, unless required to do so by Union or Member State law."

III

Principles Relating to Processing

Letter f) of Article 5.1 of the GDPR states:

"1. Personal data shall be:

(...)

f) processed in a manner that ensures appropriate security of the personal data, including protection against unauthorized or unlawful processing and against accidental loss, destruction, or damage, through the application of appropriate technical or organizational measures ('integrity and confidentiality')."

IV

Conclusion

C/ Jorge Juan, 6

www.aepd.es

28001 – Madrid

sedeagpd.gob.es

6/7

The publication by the Navarro Health Service of the personal data of women victims of gender-based violence in the opposition lists is reported.

The Navarro Health Service has informed that the publication of the hiring lists occurs based on the provisions of:

- Foral Order 347E/2017, of March 23, from the Minister of Health, which approves the management rules for the lists of candidates for temporary hiring in the centers and establishments of the autonomous bodies attached to the Department of Health. (articles 17 and 2.3, points 1, 2, 3, and 5).
- Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (article 45.1 b).
- GDPR (article 6.1 c) in relation to article 8.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights.
- Seventh Additional Provision, section 4, of the Consolidated Text of the Statute of Personnel at the service of the Public Administrations of Navarra, approved by Foral Legislative Decree 251/1993, of August 30.
- Regarding individuals who are victims of gender-based violence and in order to comply with the stipulations in Organic Law 3/2018, of December 5, on Data Protection and Guarantee of Digital Rights, measures have been implemented in its Seventh Additional Provision until the criteria for establishing a common protocol are unified, allowing victims of gender-based violence to request that their name and surname be modified so as not to be identified by the aggressor.

In the event that the competitive examination includes a reserve for Victims of Gender-Based Violence, individuals who wish to do so can indicate in the registration form their intention to participate under the

reserved quota, in which case the name change is automatically made, assigning a fictitious name that is reflected in their registration receipt along with their true name. Thus, the individual has evidence of both names together in the same document. Throughout the development of the process, the fictitious name will be used.

If there is no reserve for Victims of Gender-Based Violence, the individual can request a name change in a form submitted through the Official Registry, upon prior justification and identification. From that moment, the fictitious name will be used.

In the temporary hiring lists that arise from a competitive examination where the fictitious name was used, it will remain so during the validity of the list.

In open hiring lists that do not derive from a competitive examination, the name change can be requested through a form submitted in an Official Registry. In this case, identification of the requesting individual is required, as well as documentation proving the justification. From that moment, the fictitious name will be used in all temporary hiring lists in which the individual is registered.

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es

7/7

Therefore, based on the information provided in the previous paragraphs, no evidence has been found that substantiates the existence of an infringement within the jurisdiction of the Spanish Agency for Data Protection, as no case has been substantiated in which the name change protocol has not been attended to for individuals who request it due to being part of the group of Victims of Gender-Based Violence.

In accordance with the above, the Director of the Spanish Agency for Data Protection RESOLVES:
FIRST: TO ARCHIVE the present proceedings.

SECOND: TO NOTIFY this resolution to the NAVARRO HEALTH SERVICE - OSASUNBIDEA.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided for by article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, and in accordance with the provisions of articles 112 and 123 of the aforementioned Law 39/2015, of October 1, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file an administrative contentious appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in article 46.1 of the aforementioned Law.

940-020323

Mar España Martí

Director of the Spanish Agency for Data Protection

C/ Jorge Juan, 6
www.aepd.es
28001 – Madrid
sedeagpd.gob.es